



A COMMUNITY OF CHOICE

Planning and Development Department

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MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, AICP, Senior Planner
Subject: An Ordinance amending weeds language in municipal code to allow native grasses to grow over 6 inches in height
Date: September 22, 2025

Background:

The item for consideration is an amendment to municipal code and is approved by ordinance. The proposed Governing Body review schedule is as follows:

- Introduction and Referral: September 22, 2025
- Public Services Committee: October 6, 2025
- Second reading: October 13, 2025
- Public Services Committee: October 20, 2025
- Third and final reading: October 27, 2025

The Unified Development Code (UDC) allows for native seed landscaping. Recent amendments to the UDC have increased allowances for native seed landscaping. Native seed is often used on unused areas on industrial sites and to revegetate open spaces and vacant parcels. The City code, on the other hand, includes language making all grasses over 6 inches in height a nuisance requiring abatement by the City. Native grasses are healthier, grow better, outcompete weeds better, and look better when allowed to grow over 6 inches. Strict application of the code would require hundreds of acres of industrial parks to mow their native seed prairie grasses, which would generally encourage weed growth and would not maintain a natural landscape look.

This ordinance proposes removing the height limit on grasses for specific cases:

- The first case would be when native grass is clearly identified as the ground cover on the site plan.
- The second case is to allow open spaces designated as natural areas to retain the look and feel of a natural area.
- The third is to allow natural areas on residential and agricultural lots over 8/10ths of an acre. Larger residential lots often do not irrigate and mow the entire parcel, and upon study by Staff, it appears most residential parcels with 8/10ths of an acre or more leave at least a portion of their parcel native. Larger parcels north of the City outside of City limits appear to irrigate about 8/10ths of an acre on average. Agricultural areas often have grasses grow over 6 inches prior to grazing.
- The fourth case is to clearly allow City-managed parcels to utilize grasses over 6 inches. Although City parcels could likely fit into one of first two categories above, there could be cases where applicability is ambiguous.

The code currently allows for grasses to be over 6 inches in Greenway corridors and in cases where residents cultivate grasses for aesthetic purposes. Those exceptions will remain in code.

Attachment: Ordinance (clean version for signature and redline for reference)

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 8.60.050, WEEDS AS A NUISANCE, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, TO REVISE AND CLARIFY PROVISIONS AND SPECIFY CONDITIONS UNDER WHICH VEGETATION DOES NOT CONSTITUTE A NUISANCE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 8.60.050, Weeds as a nuisance, of Chapter 8.60, Nuisances, of Title 8, Health and Safety, of the City of Cheyenne, Wyoming, is hereby amended as set out in this ordinance.

8.60.050 - Weeds as a nuisance.

- A. Six Inches in Height. ~~All weeds, tall~~ Except as provided in subsection (C) of this section, all grasses, weeds, and rank, and other troublesome and harmful vegetation growing upon any lot or parcel of land outside the traveled portion of any street or alley in the city which ~~that~~ exceed a height of six (6) inches are a nuisance. ~~, unless shown to have been cultivated for aesthetic purposes. The chief of police shall make the determination as to whether or not vegetation is cultivated for aesthetic purposes. The greenway, set out in the greenway development plan, is exempt from this requirement upon approval by the chief of police.~~
- B. Noxious Weeds. All noxious weeds within the city are a nuisance. As used in this subsection, "noxious weeds" means any plant species designated by the Wyoming Board of Agriculture and the Wyoming Weed and Pest Council.
- ~~1. Defined. "Noxious weeds" shall be designated by the Wyoming Board of Agriculture and the Wyoming Weed and Pest Council.~~
- ~~2. Noxious Weeds a Nuisance. All noxious weeds within the city are a nuisance.~~
- C. Subsection (A) of this section shall not apply to:
1. Native or naturalized vegetation, including but not limited to grasses, flowers, shrubs, or other plant species not classified as noxious weeds, that are:
- a. Authorized for a subject lot or parcel of land as part of the site plan approved by the City in accordance with the requirements imposed under Cheyenne Unified Development Code;
- b. Located within any lot, parcel or portion thereof formally designated as a natural area in accordance with the Cheyenne Unified Development Code;

- c. Located within any residentially or agriculturally zoned lot or parcel having a total area of eight-tenths (0.8) of an acre or greater; or
 - d. Located on a lot or parcel or portion thereof managed by the City under a sustainable landscape plan intended to promote native species, reduce irrigation and chemical use, mitigate weed growth, and control erosion.
2. Any lot, parcel or portion thereof cultivated and maintained for aesthetic purposes, as determined by the compliance department; or
3. Any portion of the greenway, as identified in the City's greenway development plan, upon the approval by the compliance department.

Section 2. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 3. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle